

Disposition

The Court finds and orders as follows:

1. The Motion to Enter Stipulated Judgment after Default is DENIED, without prejudice.
2. The Court will enter the order after hearing.

5. 9:00 AM CASE NUMBER: C23-00233
CASE NAME: MAEN JWEINAT VS. NATALIE MOSS
HEARING ON SUMMARY MOTION FILED BY MAEN JWEINAT
FILED BY: JWEINAT, MAEN S.
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Maen S. Jweinats ("Plaintiff") Motion for Summary Judgment, or in the alternative, summary adjudication, ("MSJ/A"). The MSJ/A relates to Plaintiff's Third Amended Complaint ("3AC") for four causes of action relating to the lease of the subject commercial property located at 8065 Brentwood Boulevard, unit 4, Brentwood, California, against Natalie Moss Miladinovich, As Trustee Of The 1987 Miladinovich Family Trust Dated May 4, 1987 ("Defendant").

Plaintiff moves this Court for summary judgment, or in the alternative, summary adjudication, on the grounds that there is no triable issue of material fact, and that Plaintiff is entitled to judgment as a matter of law.

The motion is based on the following grounds:

GROUND ONE: The County's COVID-19 Emergency Ordinances Protected Plaintiff Jweinats' Tenancy and Lease Rights;

GROUND TWO: Tenant Properly Exercised The Lease's Second Option Extending Lease Term Through December 31, 2027;

GROUND THREE: Landlord's Refusal to Acknowledge Lease Renewal and Serving Eviction Notices on Tenant Are Retaliatory and in Violation of County Ordinances;

GROUND FOUR: No Basis for Eviction of Tenant or Award of Damages to Landlord Exists; and

GROUND FIVE: Tenant has been damaged by the actions of Landlord and should recover his damages in the sum of \$55,673.00 and said sum should be trebled and should recover court costs, including reasonable attorney fees.

For the following reasons, **Plaintiff's motion for summary judgment is DENIED.**

Request for Judicial Notice

The burden is on the party seeking judicial notice to provide sufficient information to allow the court to take judicial notice. (*Ross v. Creel Printing Publishing Co., Inc.* (2002) 100 Cal.App.4th 736, 744.) "A

court is not required to seek out on its own initiative indisputable sources of information. Whether information supplied by party is sufficient for the purpose will vary from case to case. In some cases, the original source documents may be required to provide the court with sufficient information." (*People v. Maxwell* (1978) 78 Cal.App.3d 124, 130-131.) If the information supplied is not sufficient the trial judge is entitled to refuse to take judicial notice of the matter requested. (Jefferson, Cal. Evidence Benchbook (Cont.Ed.Bar 1972) Judicial Notice, 47.4.)

Plaintiff's RJN

Plaintiff requests judicial notice of three documents:

1. Order Overruling Demurrer and Denying Motion to Strike issued on March 6, 2025, a copy of which is attached to Plaintiff's Appendix of Exhibits in Support of Motion for Summary Judgment ("Appendix") as Exhibit 30.
2. Contra Costa County Health Officer Order No. HO-COVID19-09 issued April 29, 2020, requiring residents to "shelter in place," a copy of which is attached to Plaintiff's Appendix as Exhibit 24.
3. California Governor Gavin Newsom's Stay at Home Executive Order N-33-20 issued March 19, 2020, a copy of which is attached to Plaintiff's Appendix as Exhibit 23.

Exhibit 30 of Plaintiff's Appendix is judicially noticeable under Evidence Code § 452(d) as a record of a state court ruling. Exhibits 23 and 23 of Plaintiff's Appendix is judicially noticeable under Evidence Code § 452(b) as the Court is empowered to take judicial notice of "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." (Evid. Code 452(b).) The Court **GRANTS judicial notice of all three documents.**

Defendant's RJN

Defendant requests judicial notice of two documents, certified minutes of Board of Supervisors Meeting on June 22, 2021, and September 21, 2021. Under Evidence Code 452(b), the Court is empowered to take judicial notice of "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." (Evid. Code § 452(b).) Certified minutes of Board of Supervisors meetings fall within this category. The Court **GRANTS judicial notice of both documents.**

Factual Background

The facts in the Third Amended Complaint ("TAC") are as follows.

Plaintiff entered a lease of commercial property within Defendant Miladinovich's shopping center on December 24, 2012 (hereinafter "Lease"). (TAC ¶ 1.) In 2017, Plaintiff exercised the first of two options under the Lease, extending the Lease term to December 31, 2022. (Id. at ¶¶ 11-12, Lease, § 2.) After the COVID-19 pandemic struck, the Contra Costa County Board of Supervisors enacted a successively superseding series of ordinances containing temporary prohibitions on certain evictions of commercial tenants in Contra Costa County to ameliorate the impacts of the pandemic (hereinafter, collectively "Ordinances") in 2020 to 2021. (Id. at ¶¶ 14-15 and 37-38 and Exh. 2; Miladinovich's RJNs filed June 21, 2023, and June 26, 2023, and her Errata filed August 27, 2024 (hereinafter "Miladinovich RJNs").) The Ordinances provide that "a landlord of commercial real property shall not terminate a tenancy for failure to pay rent if the tenant demonstrates that the

failure to pay rent is directly related to a loss of income or out-of-pocket medical expenses associated with the COVID-19 pandemic or any local, state, or federal government response to the pandemic.” (See, e.g., TAC, Exh. 2, § 4(a).) In addition to prohibiting eviction notices and unlawful detainer actions served or filed during the effective term of the Ordinances, the Ordinances all provided actionable remedies in identical language as seen, for example, in Section 6 (b) of Ordinance 2021-20.

Through April 30, 2020, Plaintiff timely made all required rent payments due under the Lease. TAC, ¶ 17. Thereafter, in May, 2020, after receiving a text message from a representative of Defendant Miladinovich, Plaintiff provided Defendant with a Declaration of COVID-19 Financial Distress dated May 1, 2020, documenting Plaintiff’s inability to continue to timely pay rent as a result of the COVID-19 pandemic due to: (1) substantial loss of business income, (2) temporary closure of business, (3) substantial out-of-pocket medical expense, (4) decrease in traffic, and (5) shorter business hours (hereinafter “May 2020 Declaration”). (Id. at ¶ 18, Exh. 1, § 3.1, and Exh. 3.) Therein, it was stated that “Fantasia Smoke Shop is seeking protection under the Contra Costa County eviction moratorium ordinance.” (Id.) Although not able to pay full rent due to hardships of the COVID-19 pandemic, Plaintiff made a rent payment to Defendant Miladinovich in the amount of \$3,322.60 on October 1, 2020. (Id. at ¶¶ 16 and 19.)

On March 8, 2021, Defendant Miladinovich served a Five-Day Notice to Pay or Quit on Plaintiff (hereinafter “March 2021 Notice”) for “rent . . . for months of May, June, July, August, September, November, and December 2020, and January and February 2021” and “Common area maintenance charges” (Id. at ¶ 20 and Exh. 4.) The March 2021 Notice did not include a Notice of Tenant=s Rights and Availability of Assistance, as required by the Ordinances. (Id. at ¶21.) On March 15, 2021, Plaintiff provided, under penalty of perjury, another Declaration of COVID-19 Financial Distress to Defendant Miladinovich in which Plaintiff set forth a payment plan for the shortfall of actual rent and common area expense, with a final payment proposed for October 1, 2022 (hereinafter “March 2021 Declaration”). (Id. at Exh. 5.) Plaintiff stated in the March 2021 Declaration that it was being presented “pursuant to Contra Costa Ordinance No. 2021-04” and “[d]ue to the COVID-19 pandemic.” (Id.)

Plaintiff commenced making payments as promised in his Declaration. Nevertheless, on October 15, 2021, Defendant Miladinovich caused to be served another Five Day Notice to Pay or Quit on Plaintiff (hereinafter “October 2021 Notice”) for “rent . . . for a portion of the month of May 2021, and the months of June, July, August, September, and October 2021” and “Common area maintenance charges” for a total demanded of \$18,203.40. (Id. at ¶ 23 and Exh. 6.) The October 2021 Notice also did not include a Notice of Tenant=s Rights and Availability of Assistance, as required by the Ordinances. (Id.) Due to the immediate threat of eviction and further retaliation, Plaintiff paid the entire sum set forth in the October 2021 Notice within the five-day period, as demanded. (Id. at ¶ 24.)

Under the Lease, Plaintiff has an option to extend this lease for a period of two five (5) year options if all rents and common area costs have been paid in a timely manner. Tenant to notify landlord in writing of his intent to extend no less than 90 days before the expiration of original terms.” (TAC, Exh. 1, § 2.) On September 23, 2022, more than ninety days prior to the Lease expiring on December 31, 2022, Plaintiff attempted to exercise the second of the two options to extend the Lease. (Id. at ¶¶ 25-26 and Exh. 7.) Defendant Miladinovich refused to extend the Lease, citing Plaintiff having fallen behind on payment of rent due during the time that the Ordinances were in effect as a reason. (Id.)

In its TAC, Plaintiff seeks to hold Defendants accountable for violations of the Ordinances, including the two eviction notices and alleged retaliation against Plaintiff for exercising rights under the

Ordinances as described therein. (Id. at ¶¶ 4, 7, and 36-40.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Analysis

Breach of Contract Cause of Action

Plaintiff's Initial Burden

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Here, the existence of the lease agreement between the two parties for the subject property is uncontroverted as is the existence of the second lease extension for a term ending in December 31, 2027. (UMF 1-2.)

Plaintiff asserts performance of the contract through the evidence of RFA responses by Defendant and the Fantasia Smoke Shop business ledger. (UMF 10-11.) Plaintiff asserts excuse for nonperformance through the evidence of Exhibit 3 to the TAC which is the purported Declaration of Covid-19 Financial Distress. (UMF 10; See AOE 31, Exhs. 3-6.)

It is undisputed that more than 90 days prior to the lease expiring, on December 31, 2022, Plaintiff provided notice of his intent to exercise the second lease extension option to December 31, 2027, according to the terms of the lease. (UMF 13.)

It is undisputed that Defendant refused Plaintiff's exercise of the second lease extension through December 31, 2027, Defendant refutes that Plaintiff's exercise was valid and that Defendant's refusal was improper. (UMF 14.)

Plaintiff has established evidence of damages through declarations by Plaintiff Maen S. Jweinat and Attorneys Cary S. Reisman and Mathew Kumin. (UMF 16.) Thus, Plaintiff has met his initial burden of proof. The burden now shifts to Defendants to either show a dispute of material fact as to an element or to establish all the elements of a defense.

Defendant's Dispute of Material Facts

For UMF 2 Defendant brings up two disputes of material facts. Defendant's first dispute whether the rents were timely paid is not a valid dispute since Defendant cites no evidence for this dispute. The two pieces of evidence cited are about the smoke shop and gift store distinction. Defendant's second dispute was that the option could not be exercised since Plaintiff changed the business from a gift shop to a smoke shop. However, Defendant does not cite any authority that provides Defendant with the power to do so. Thus, Defendant does not provide any valid disputes as to UMF 2.

Defendant successfully disputed the same material fact for UMF 10 and 16 . Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff's performance or excuse of nonperformance element. Summary Adjudication must be denied as to this cause of action.

Violation of Contra Costa Ordinances Cause of Action

Here, Defendant disputes UMF 25, 26, and 29 with identical disputes and evidence as presented in UMF 10 and 16. Thus the same analysis applies to those UMF's.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount

due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action.

Specific Performance Cause of Action

A cause of action for breach of contract for specific performance requires the following elements: (1) Contract breach; (2) inadequacy of a legal remedy; (3) underlying contract reasonable and supported by adequate consideration; (4) existence of a mutuality of remedies; (5) contractual terms sufficiently definite to know what it is to enforce; and (6) substantial similarity between requested performance and promised performance. (*Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463, 472.)

Since the first element of specific performance is a contract breach, the same analysis from the breach of contract cause of action applies to this cause of action.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, “notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff’s performance or excuse of nonperformance for the breach of contract element. Summary Adjudication must be denied as to this cause of action.

Declaratory Relief Cause of Action

The essential elements of a declaratory-relief cause of action are (1) an actual controversy between the parties regarding contractual or property rights (2) involving continuing acts/omissions or future consequences, (3) which has sufficiently ripened to permit judicial intervention and resolution, but (4) which has not yet blossomed into an actual cause of action. (*Osseous Technologies of America, Inc. V. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 366-369.)

Here, Plaintiff is unable to meet the first prong for the same circumstances for the specific performance cause of action, because Defendant successfully demonstrated a dispute of material fact as to whether the subject lease agreement was breached. Thus, the breach of contract analysis also applies to this cause of action.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial

distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, “notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff’s element for an actual controversy between the parties regarding contractual or property rights. Summary Adjudication must be denied as to this cause of action.

Defendant’s Affirmative Defenses

The estoppel, and two failures to satisfy conditions for renewal or extension affirmative defenses are also affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 41, 45, 48.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, “notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 41, 45, and 48.

Defendant’s Cross Complaint Declaratory Relief Cause of Action

The Court initially notes that Plaintiff did not mention this cause of action in its notice and as such should not be allowed to argue this issue. (Cal. Rules of Court, rule 3.1350(b).)

Even if this issue was in the notice all the previous UMF’s are incorporated by both parties, as such, the Court denies the summary adjudication based on the previous analysis of the previous UMF’s.

Defendant’s Cross Complaint Trespass Cause of Action

The valid exercise of the second option affirmative defenses fails for Plaintiff’s because this defense is affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 51.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman

Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, “notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 51.

Unlawful Detainer Action

The valid exercise of the second option affirmative defenses fails for Plaintiff’s because this defense is affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 52.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, “notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19.” (Plaintiff’s Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant’s inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 52.

Conclusion

As analyzed above, **Plaintiff’s motion for summary judgment is DENIED.**

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Defendant’s Evidentiary Objections

Declaration of Loay Jweinat

OBJ 1: paragraph 1-23, page 2-5. **Overruled.**

Declaration of Loay Jweinat

OBJ 1: Paragraph 2, page 2, lines 8-9. **Overruled.**

OBJ 2: Paragraph 3, page 2, lines 12-14. **Overruled.**

OBJ 3: Paragraph 5, page 2, lines 15-16. **Sustained.**

Declaration of Cary S. Reisman

OBJ 1: Paragraph 6, page 2, lines 25-28. **Overruled.**

OBJ 7: Paragraph 13, page 4, lines 14-17. **Overruled.**

OBJ 8: Paragraph 14, page 4, lines 19-24. **Overruled.**

OBJ 9a: Paragraph 15, page 4, lines 25-28. **Overruled.**

OBJ 9b: Paragraph 15, page 4, lines 25-28 and page 5, lines 1-6. **Overruled.**

Declaration of Matthey Kumin

OBJ 1: Paragraph 4, page 2, lines 14-17. **Overruled.**

6. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SEQUOIA EQUITIES, INC.
TENTATIVE RULING:

Before the Court is a demurrer by defendants Sequoia Equities Inc. and Alder Creek Management, Inc. to Plaintiffs' second amended complaint. For the reasons set forth, the Court **CONTINUES** the hearing to **9:00 a.m. on April 27, 2026**. The Court **ADVANCES** the hearing on the demurrer by COIT Financial Group, LLC to the same date and time, as set forth below.

Continuance in Light of Pending COIT Demurrer and Advancement of COIT Demurrer Hearing

The register of actions for this matter reflects, and the current demurrer papers note, that defendant COIT Financial Group, LLC has also filed a demurrer to the second amended complaint ("2AC"). The Court will continue the hearing on the Sequoia/Alder Creek demurrer and advance the hearing on the COIT demurrer so that the pleading challenges can be heard at the same time. The hearing on the COIT demurrer is hereby **RESET and ADVANCED** from **June 8, 2026 to 9:00 a.m. on April 27, 2026**. Counsel for the demurring parties Sequoia/Alder Creek is ordered to serve all parties with written notice of this ruling and of the change in the hearing date on the COIT demurrer **by March 2, 2026**.

Plaintiffs' Notice Objection

The continuance resolves any objection by Plaintiffs concerning the lack of timely service of a notice of hearing on the demurrer, to the extent that objection has not been waived. The notice of hearing with the actual hearing date on the demurrer was served less than 16 court days, plus two court days